

ORDER SHEET
IN THE LAHORE HIGH COURT,
MULTAN BENCH, MULTAN

JUDICIAL DEPARTMENT
Writ Petition No. 15346-B of 2025

Muhammad Ahmad Ramzan. **Versus** The State and another.

S.No. of order/ proceeding.	Date of order/ proceeding.	Order with signatures of Judge, and that of parties or counsel, where necessary.
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07.01.2026. Ms. Saleh Bibi, Advocate with the petitioner.
 Mr. Musleh ud Din Khan, Assistant Advocate
 General with Peeran Ditta, A.S.I.
 Mr. Noshair Khan, Advocate/Legal Advisor
 Punjab Food Authority along with Munir Ahmad,
 Food Safety Officer.

Through this constitutional petition under Article 199 of the Constitution of Islamic Republic of Pakistan, 1973, the petitioner (Muhammad Ahmad Ramzan), being arrayed as an accused in case F.I.R. No. 549/2024, dated 25.07.2024, registered with Police Station City Chichawatni, District Sahiwal, for offences under Sections 22-A, 23 and 24 of the Punjab Food Authority Act, 2011, seeks his pre-arrest bail.

2. According to the case set up in the F.I.R., Munir Ahmad-complainant (Food Safety Officer, Punjab Food Authority, Cheechawatni) in the pursuance of spy information received on 25.07.2024, reached the spot at about 02:30 a.m. along with his officials and conducted the raid. Certain persons (1) Muhammad Ahmad Ramzan/petitioner, (2) Zulfiqar and two unknown persons were found manufacturing

fake/artificial/synthetic milk using skimmed/dry milk powder, vegetable oil and other chemicals. Accused persons fled away from the scene crossing over the walls. Synthetic milk weighing 5500 litres along with raw material and utensils used in the manufacturing process were recovered from the spot. Samples from the artificial/synthetic milk were separated and got tested from Government Public Analyst Lab. Vehicle/Tanker bearing registration No.LJS/9186 was handed over to police.

3. Learned counsel for the petitioner canvassing for pre-arrest bail mainly focused on the points that petitioner was falsely involved in the present case; Co-accused namely Tariq Mehmood was allowed pre-arrest bail by this Court, vide order dated 22.12.2025, passed in Writ Petition No. 15134/2025; another co-accused Zulfiqar Ali also succeeded in obtaining extra ordinary concession of pre-arrest bail from august Supreme Court of Pakistan through order dated 21.04.2025 passed in CPLA No.2549-L/2024; case of the present petitioner Muhammad Ahmad Ramzan was at par with the case of said co-accused persons, as such principle of consistency was fully applicable entitling the petitioner to the same relief; nothing has to be recovered from the possession or at the instance of petitioner; no purpose is likely to be served by handing over the petitioner into the clutches of police; petitioner was declared innocent in the successive investigations, whereas authority succeeded in getting the above verdict of innocence

reversed from D.I.B. in the last investigation; opinion of the I.O.(s) being at variance was sufficient to bring the present case within the ambit of further inquiry.

Learned counsel placed reliance upon cases **PLD 2024 SC 1241, 2024 SCMR 805, 2023 SCMR 884 and PLD 2017 SC 730.**

4. The learned legal advisor appearing on behalf of complainant (Punjab Food Authority) opposed the present petition vehemently and rigorously on multiple grounds. He added that petitioner is the main culprit and proprietor of the business of manufacturing the fake/artificial milk; complainant, being a public servant, was having no axe of his own to grind against the petitioner; since petitioner has committed an offence against the public at large, as such he is not entitled to any relief.

5. Arguments heard. File perused.

6. Perusal of the record transpires that complainant along with officials of Punjab Food Authority conducted raid at certain premises, where Muhammad Ahmad Ramzan-petitioner, Zulfiqar and two unknown persons were found manufacturing synthetic/fake/artificial milk. They (accused persons) succeeded in fleeing away. Huge quantity of 5500 litres of fake/artificial milk was secured from the spot. Although petitioner succeeded in getting the verdict of initial investigation officers in his favour, but in the last investigation carried out by DIB he was found to be guilty being owner of the premises,

where the fake/artificial milk was being manufactured. One Muhammad Hassan Ishaq, owner of the premises produced a rent deed of the above premises to the Investigating Officer showing one Nadeem Sultan son of Nazir Ahmad as tenant of the premises, which was found to be forged during the investigation and offences under Sections 420, 468 and 471 of PPC were added accordingly. Petitioner being proprietor of the said business, happened to be the beneficiary of above unsuccessful attempt of derailing the investigational process. Circumstances appearing on the surface so far are pointing the accusing finger towards the petitioner. Prima facie involvement of the petitioner in the crime could not be ruled out.

7. When an accused claims the benefit on the strength of principle of consistency, he must demonstrate that his case is at par with the case of co-accused already accommodated to the relief. In the present case role played by petitioner is more significant, amounting to masterminding and different from the role of co-accused. Material collected against him is more incriminating. Facts of the case against the petitioner are substantially different and more serious than the co-accused, as such principle of consistency does not apply to the case of petitioner.

8. Milk is used as a complete diet or complete drink as it is full of health benefits. It contains a wide array of nutrients including vitamins, minerals, proteins, healthy fats, and antioxidants. It is a rich

source of quality proteins that contain all nine essential amino acids, which help in reducing age related muscle damage. Milk is also beneficial for bone growth which reduces chances of osteoporosis and bone fractures.

Synthetic Milk that is also called **Sweet Poison** is not the milk but an artificial imitation of natural milk with a high degree of adulteration to increase the volume of milk. Main components of Synthetic Milk are water, pulverized detergent or soap, sodium hydroxide, vegetable oil, salt and urea. Although it does not kill at once but it slowly makes the body a fertile ground or farm house for diseases. According to research, use of Synthetic Milk inflicts very serious harms on human body causing **swelling in the eyes** and **complications in lever and kidney**. Apart from this, Synthetic Milk is **deadly for pregnant women** and patients suffering from conditions of **heart ailment** and **high blood pressure**. What is worse is that Synthetic Milk is extremely **poisonous for small children**.

9. Grant of pre-arrest bail is an extra ordinary remedy routed into equity to protect the honour and freedom of the innocent persons in criminal cases actuated by abuse of process of law for oblique motives and purposes; this protection cannot be extended in every run of the mill criminal case without grievously hindering the investigative process. Reference may be made to the case titled, "*Abdul Aziz Memon Vs. The State*" (2020 SCMR 313). Petitioner happened to be prima facie guilty for

an offence, which is a heinous crime against the public at large. Circumstances have presented a dreadful picture, which do not permit me to exercise my discretion in favour of petitioner.

10. Precedent judgments relied upon by learned counsel for petitioner were found to have been rendered on different premises, as such have no relevancy with the facts of present case.

11. For what has been discussed above, present petition has no force, hence **dismissed**. Ad-interim pre-arrest bail already granted to petitioner is recalled.

12. Needless to mention that any observation made in the above order is tentative in nature and shall not influence the learned trial court in any manner.

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(TANVEER AHMAD SHEIKH)
JUDGE

APPROVED FOR REPORTING.

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JUDGE

Shahzad Ahmad Nasir

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